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DEPARTMENT OF THE AIR FORCE INTERACTIONS WITH FEDERALLY RECOGNIZED TRIBES

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This publication implements Department of Defense Instruction (DoDI) 4710.02, *DoD Interactions with Federally Recognized Tribes*, Air Force Policy Directive (AFPD) 90-20, *Mission Sustainment*, and AFPD 32-70, *Environmental Considerations in Air Force Programs and Activities*. This publication applies to all civilian employees and uniformed members of the Regular Air Force (RegAF), the U.S. Space Force (USSF), Air Force Reserve (AFRC), Air National Guard (ANG), and those with contractual obligations to abide by the terms of Department of Air Force (DAF) issuances. While supporting the intent of this Instruction, ANG units may prepare appropriate policy, supplement, guidance, and/or procedural documents reflecting their unique legal status, resources, and structure as circumstances dictate. ANG units will route any unique documentation to the Office of Primary Responsibility (OPR) of this publication for coordination. AFMC centers must support the intent of this Instruction within the bounds of their unique circumstances.

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Disposition Schedule, which is located in the Air Force Records Information Management System. This publication may be supplemented at any level, but all supplements must be routed to the OPR of this publication for coordination prior to certification and approval. Refer recommended changes and questions about this publication to the OPR using AF Form 847, *Recommendation for Change of Publication*; route the DAF Form 847 from the field through the appropriate functional chain of command. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the DAF.

SUMMARY OF CHANGES

This publication has been updated to include any DAF changes over the past four years. Changes include clarification of the roles and responsibilities for tribal consultation to reflect changes in the Department of the Air Force organizational structure. It simplifies the requirements for meaningful consultation to facilitate implementation and expands upon the activities that typically involve tribal interests. The publication provides more detailed explanation of the role of the installation tribal liaison officer (ITLO), installation Commander and redistributes the responsibilities for the MAJCOMs to the right organization. It also clarifies responsibilities related to protection of culturally sensitive information, to include traditional indigenous knowledge.

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Chapter 1

PROGRAM OVERVIEW

1.1. Purpose. This DAFI directs actions to ensure policy compliance, assigns responsibilities, and outlines procedures to guide DAF interactions with federally recognized tribes (referred to in this issuance as "tribes"). It directs all echelon levels to build relationships and conduct consultation with federally recognized American Indian/Alaska Native tribes, bands, nations, pueblos, villages, or communities as required by federal laws and regulations, Executive Orders (EOs), and Presidential Memoranda listed in **Attachment 1**. It supports the unique trust responsibility relationship the United States Government has with tribes and highlights aspects of the DAF's mission that may affect tribes. The intent of this DAFI is for senior leaders to develop long-lasting relationships with installation associated tribes, on behalf of the United States Government. Detailed guidance on installation-level procedures is provided in adaptable tools such as the Air Force's Civil Engineer Process Playbooks and Air Force Operational Airspace Instructions. Due to their unique standing, apart from federally recognized tribes, DoD published separate instructions for Native Hawaiian Organizations. Please refer to DoDI 4710.03, *Consultation with Native Hawaiian Organizations (NHOs),* for policy, responsibilities, and essential procedures regarding Native Hawaiian Organizations.

1.2. Procedures. It is the DAF practice to:

1.2.1. Take into consideration the significance that tribes place on protected tribal resources, ancestral lands, and treaty lands.

1.2.2. Meet responsibilities to tribes in accordance with applicable federal trust responsibility doctrine, treaties, and agreements between the United States Government and tribal governments.

1.2.3. Comply with federal laws and regulations, EOs, and Presidential Memoranda governing interactions with tribes, including but not limited to those listed in **Attachment 1**.

1.2.4. Build stable and enduring government-to-government relations with federally recognized tribal governments in a manner that sustains the DAF mission and minimizes effects on protected tribal resources and activities.

1.2.5. Fully integrate the principles and practices of meaningful consultation and effective cross-cultural communication with tribal representatives from top leadership down to the lowest level of installation staff officers and civilian staff personnel.

1.3. General.

1.3.1. The DAF has a responsibility to consult with tribes who have an interest in DAF lands and activities even though the tribe may not be currently geographically located near the installation or its airspace.

1.3.2. The DAF has a responsibility to consult with tribes in good faith. Consultation must occur in a timely fashion for activities of interest to tribes, while providing a reasonable opportunity for comment. Tribal sovereignty must be respected in accordance with laws, regulations, and executive directives, including EO 13175, *Consultation and Coordination with Indian Tribal Governments*.

1.3.3. The DAF recognizes that government-to-government consultation is an inherently governmental responsibility held by the SAF/IE or their designated representative, MAJCOM leadership or designated representative(s), and the installation or wing commander or their designated representative such as the installation tribal liaison officer (ITLO) for installation-level projects. Consultants and contractors may not conduct government-to-government consultation but may provide administrative and logistical support.

1.4. Activities Typically Involving Tribes.

1.4.1. DAF will conduct consultation for the following proposed actions, undertakings, plans, or ongoing activities that may impact or affect tribes including, but are not limited to:

1.4.1.1. Disturbance of land.

1.4.1.2. Construction.

1.4.1.3. Training.

1.4.1.4. Over-flights.

1.4.1.5. Real estate transactions.

1.4.1.6. Land use planning, plan development, and decisions.

1.4.1.7. Management and protection of properties of traditional, religious, and cultural importance including, but not limited to, historic properties, ethnobotanical areas, and sacred sites.

1.4.1.8. Access to sacred sites pursuant to the American Indian Religious Freedom Act, Title 42 United States Code (USC) and EO 13007, Indian Sacred Sites.

1.4.1.9. Protection, repatriation, and disposition of human remains and cultural items in accordance with 25 USC §§ 3001 et seq *et seq.*, the *Native American Graves Protection and Repatriation Act* (NAGPRA) of 1990 (as amended), implemented by regulations promulgated at Title 43 Code of Federal Regulations (CFR) Part 10, *Native American Graves Protection and Repatriation Regulations*.

1.4.1.10. Activities affecting reserved treaty rights, to include protection of and access to natural and cultural resources.

1.4.1.11. Access to subsistence resources.

1.4.1.12. Educational and public affairs activities linked to tribal topics or resources of tribal concern.

1.4.1.13. General land use/military airspace operations.

1.4.1.14. Use of symbols or emblems that may have traditional or cultural significance.

1.4.2. Installations with cultural resources are required to develop and maintain an integrated cultural resources management plan (ICRMP), pursuant to Department of the Air Force Manual (DAFMAN) 32-7003, *Environmental Conservation*, and DoDI 4715.16, *Cultural Resources Management* **(T-0)**.

1.4.2.1. Tribes having a historic or cultural affiliation with lands managed by an installation will be provided opportunities to consult on, and participate in, the development, maintenance, and implementation of the installation's ICRMP.

1.4.2.2. The ICRMP will include an appended installation tribal relations plan (ITRP) and copies of formal written agreements (e.g., comprehensive agreements, memoranda of understanding, plans of action, programmatic agreements, etc.).

1.4.3. Installations will inform tribes of the content of the natural resources program and provide the opportunity to consult on, and participate in, the development and implementation of the installation's integrated natural resources management plan (INRMP) in accordance with DoDI 4715.03, *Natural Resources Management*, and DAFMAN 32-7003, *Environmental Conservation*. **(T-0)**.

1.5. Tribal Consultation Practices.

1.5.1. Indigenous peoples are experts in their culture and lifeways. Indigenous knowledge obtained from a recognized leader or designated representative of a tribe should be respected and greater recognition and inclusion of indigenous knowledge should be incorporated into decision-making processes. Shared knowledge may be considered sensitive. Procedures shall be in place and care shall be taken to understand whether such Indigenous Knowledge contains any culturally sensitive information that the knowledge holders do not want made public, and to protect any culturally sensitive information to prevent against unauthorized use, misuse, or inadvertent disclosure.

1.5.2. DAF staff should take into consideration and respect tribal protocols when consulting. In doing so, keep in mind that:

1.5.2.1. Tribal representatives may open a meeting with a traditional ceremony, blessing, or prayer.

1.5.2.2. The installation should schedule meetings and develop meeting agendas in advance and in coordination with tribes to allow sufficient time for the tribe to coordinate attendance by appropriate tribal members, such as elders, traditional religious leaders, traditional knowledge holders, and translators, in addition to making preparation of traditional practices.

1.5.2.3. Installation representatives will not request additional information the tribe is unwilling to share for religious or cultural reasons. Tribal representatives may need to clear the release of information with traditional religious leaders or tribal council members before making commitments.

1.5.2.4. Tribal government organizational structures and internal policies differ, and these differences may affect formal titles and forms of address (such as Chief, Governor, or Chair) and other forms of protocol.

1.5.2.5. Tribal representatives may be elected or appointed, political or religious, and exhibit other variations from tribe to tribe.

1.5.3. Consult with each tribe separately unless tribes choose to act and or meet collectively. Installations should not in any way coerce tribes to meet collectively, as this would not constitute government-to-government consultation. Tribes may act collectively on their own initiative, at the invitation of another tribe, as part of an existing affiliation with a tribe, or at the invitation of the installation(s).

1.5.3.1. Many tribal government leaders do not consider large, multi-installation and multi-tribe meetings to be government-to-government consultations.

1.5.3.2. Installation commanders, ITLOs, and others should consider planning breakout meetings with leaders of individual tribes for government-to-government consultations during multi-tribal, multi-installation, and/or multi-day meetings.

1.6. Culturally Sensitive Information. During the consultation process, DAF representatives must take into account confidentiality concerns raised by tribes for any culturally sensitive information they provide. **(T-0)**. The DAF and its representatives will:

1.6.1. Make every reasonable effort, consistent with the law, to withhold from public disclosure specific information that a tribe identifies as confidential, especially information related to sacred sites, sites identified as having cultural or natural significance, and historic properties to include traditional cultural places. **(T-0)**. See DAFMAN 32-7003 for specific confidentiality and sensitivity requirements related to cultural and natural resources.

1.6.2. Provide public access to relevant installation records in accordance with Force Freedom of Information Act (FOIA) regulation; 5 USC § 552 *Freedom of Information Act*, and DoDM 5400.07 _AFMAN 33-302, *Freedom of Information Act Program*, except those records protected from disclosure by a statutory exemption. **(T-0)**.

1.6.3. Encourage tribes to seek the advice of tribal legal counsel before providing sensitive information to the DAF. **(T-0)**.

1.6.4. Identify tribal confidentiality concerns and agree on a process for dealing with culturally sensitive information early on in the consultation process**. (T-0)**. When appropriate, consider the use of consultation protocol agreements to stipulate roles, responsibilities, and agreed-upon process for handling culturally sensitive information.

1.7. Recording the Results of Consultation.

1.7.1. DAF installations will afford tribes opportunities to consult on the development of formalized agreements to foster relationships that facilitate military training and readiness and that capture issues of common interest to each party, including addressing issues of importance to tribes. **(T-1).** Examples are consultation protocol agreements, NAGPRA comprehensive agreements, or memoranda of understanding.

1.7.2. Meeting facilitators must document in writing each consultation and formal meetings for the administrative record, while sequestering or omitting culturally sensitive information identified by tribal members during the discussions. **(T-0)**.

1.7.3. Consent, approval, or formal agreement from tribal governments is not required to conclude the consultation process and proceed with a project on federal land. In every instance, the record must show that the DAF provided sufficient opportunity for tribal review and comment, and carefully considered all the available evidence and points of view before determining a final course of action.

1.7.4. Meeting facilitators will ensure that consultation results, decisions, and other outcomes are distributed to all consulting parties for review before they are entered into the installation's consultation record. **(T-0).** The consultation record must include the outcome, the reason behind the decisions that led to the outcome, and the data compiled to reach the final outcome. The DAF and its representatives will ensure exclusion of culturally sensitive information and information sensitive to the DAF mission. **(T-0)**.

1.7.5. Consultation for planning and implementation of a proposed action is considered complete when questions or concerns from the tribe(s) have been addressed; tribe(s) have indicated no concerns; tribe(s) have not responded to multiple invitations to consult conveyed via phone, e-mail, and certified mail; the installation or MAJCOM and the tribe(s) have reached consensus on resolution of the tribal concerns; or the installation or MAJCOM has given careful consideration of interests and available evidence, determined a final course of action, and notified the tribe(s).

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. Assistant Secretary of the Air Force for Installations, Environment, & Energy (SAF/IE). SAF/IE, through the Deputy Assistant Secretary of the Air Force for Energy, Installations and Environment (SAF/IEE), will:

2.1.1. Serve as the principal DAF representative on all tribal related issues with the Office of the Secretary of Defense and its staff, other federal agencies, and Congress. **(T-0)**.

2.1.2. Serve as, or appoint, a DAF Tribal Liaison Officer who is the office of primary responsibility for the agency's tribal relations program, and the advocate within the corporate structure for tribal relations resources. **(T-1)**.

2.1.3. Provide policy, direction, and oversight for all matters pertaining to the formulation, review, and execution of plans, policies, programs, and budgets related to DAF government-to-government tribal interaction. **(T-1)**.

2.1.4. Delegate authority to AF/A4C and all other DAF commands, including ANG, for tribal program execution management. **(T-1)**.

2.1.5. Provide overall oversight of the DAF tribal relations program to include program performance compliance with known requirements. **(T-1)**.

2.2. DAF Tribal Liaison Officer will:

2.2.1. Ensure appropriate action is taken to resolve significant tribal issues and disputes that have been elevated to SAF/IE. **(T-1)**.

2.2.2. Coordinate policy and best practices throughout the DAF, as well as with the other military services, other federal agencies, and tribal organizations, as appropriate, on tribal issues of regional and national scope. **(T-1).**

2.2.3. Engage in government-to-government relations with federally recognized tribes, as appropriate, when requested by installations, MAJCOMs, or tribes. Consult in a timely manner, responsive to tribal interests and needs. **(T-1)**.

2.2.4. Honor treaties and implement trust responsibility relationships. **(T-1)**.

2.2.5. Integrate the requirements from federal laws and regulations, EOs, and Presidential Memoranda, into DAFIs, DAFMANs, and guidance. **(T-1)**.

2.2.6. Issue specific guidance regarding training and funding opportunities pertinent to this DAFI. **(T-1)**.

2.3. Director, Public Affairs, Office of the Secretary of Air Force Public Affairs will:

2.3.1. Develop the DAF strategic messaging on tribal relations in coordination with the DAF Tribal Liaison Officer. **(T-2)**.

2.3.2. Assist DAF organizations in developing cross-cultural communication opportunities. **(T-2)**.

2.3.3. Develop processes to coordinate communication between tribal leadership, installations, and headquarters leadership with the DAF Tribal Liaison Officer. **(T-2)**.

2.4. Air Force Deputy Chief of Staff for Operations (AF/A3) will:

2.4.1. Incorporate DAF tribal relations policy requirements into DAF operational instructions when installation, airspace, and/or range operations may affect tribal lands, rights, resources, or interests. **(T-1)**.

2.5. General Counsel of the DAF, Installations, Energy and Environmental Law Division (SAF/GCN) will:

2.5.1. Advise DAF organizations on matters involving questions or development of policy relating to tribal treaty rights, consultation requirements of federal laws, regulations, EOs, and Presidential Memoranda. **(T-1)**.

2.5.2. Provide subject matter expertise, assistance, and training opportunities to DAF organizations, as requested, on issues involving tribes. **(T-1)**.

2.5.3. Assist DAF organizations with tribal consultation requiring Secretarial-level participation, or involving prominent and/or controversial situations. **(T-1**).

2.5.4. Coordinate with DoD and other Service OGCs to ensure consistency on programmatic or significant issues related to tribal requirements or policies. **(T-1)**.

2.5.5. Consult with the Headquarters, United States Air Force, Judge Advocate General (AF/JA), Operations and International Law, Environmental Law and Litigation Division (AF/JAOE) on significant or policy development matters. **(T-1).**

2.5.6. In coordination with SAF/GCA and AF/JAOE, provide guidance upon request about payments to tribes and tribal members for expenses related to compliance with this DAFI.

2.6. The Air Force Operations and International Law Directorate, Environmental Law and Litigation Division (AF/JAOE) will:

2.6.1. Provide legal counsel to DAF organizations concerning the application of settled policy regarding Indian treaties, Indian case law, and DoD policies to DAF plans, activities, and operations, as well as tribal treaty rights, and requirements of federal laws, regulations, executive orders, and Presidential memoranda.

2.6.2. Assist DAF organizations in identifying and complying with tribal interaction requirements of federal laws and regulations, EOs, and Presidential Memoranda.

2.6.3. Assist DAF organizations to meet tribal consultation responsibilities, including those identified in **Chapter 1** of this DAFI.

2.6.4. Provide subject matter expertise, assistance, and training opportunities to installation legal offices, as well as DAF organizations, as requested, on issues involving tribes.

2.6.5. Coordinate engagement with Federal agencies, state, or tribal council, or the Department of Justice, on matters involving settled policy.

2.6.6. In coordination with SAF/GCN and SAF/GCA, provide guidance upon request about payments to tribes and tribal members for expenses related to compliance with this DAFI.

2.7. Deputy Chief of Staff for Logistics, Engineering and Force Protection (AF/A4), through the Office of the Air Force Director of Civil Engineers (AF/A4C), will:

2.7.1. Prepare and issue guidance for executing DAF tribal relations program policy and supplemental guidance, advocate for resources, and oversee execution of tribal relations programs and management requirements throughout the DAF. **(T-1)**.

2.8. Air Force Materiel Command (AFMC). AFMC, through the Air Force Installation and Mission Support Center (AFIMSC) and the Air Force Civil Engineer Center (AFCEC), will:

2.8.1. Assist MAJCOMs and installation personnel in identifying tribes that have historic or cultural affiliation with lands controlled, used, or overflown by the DAF. **(T-1).** Provide information from authoritative sources to commanders, including input from tribes, when appropriate. **(T-1)**.

2.8.2. Ensure the availability of appropriate senior-level training that highlights tribal history, laws, treaties, and government-to-government consultation requirements and techniques for installation commanders and ITLOs. **(T-1)**.

2.8.3. Identify training opportunities and provide training information to DAF personnel (e.g., resource managers, legal counsel, protocol officers, etc.) who engage directly or indirectly with tribes. Training will address tribal culture, history, laws, and treaties, as well as access, use, and privacy issues that may be affected by DAF operations, such as low-level flights and access to sacred sites and treaty rights. **(T-1)**.

2.8.4. Advise on the development and maintenance of installation tribal relations plans. **(T-2)**.

2.8.5. Maintain subject matter experts (SMEs), technical advisors, and specialists who will provide technical assistance, and statutory and regulatory guidance on tribal relations issues, interests, and resources to the DAF enterprise. **(T-1)**.

2.8.6. Maintain the annual tribal relations report, copies of installation tribal relations plans, and a list of ITLOs on the DAF Civil Engineering Microsoft SharePoint (™) site, eDASH. **(T-2)**.

2.9. Major Commands (MAJCOMs) and Field Commands (FLDCOMs) will:

2.9.1. In situations where the MAJCOM/FLDCOM will initiate consultation with tribes, do so as early as possible in the planning process in compliance with Department of the Air Force's NEPA regulations at Title 32 Code of Federal Regulations **Part 989**, *The Environmental Impact Analysis Process (EIAP)*. **(T-1).**

2.9.1.1. Coordinate with the AFCEC National Environmental Policy Act (NEPA) Center; AFCEC SMEs, technical advisors, and specialists; applicable installation ITLOs and program managers; and other Federal agencies if applicable to ensure all tribes, interested parties, and established procedures are identified. **(T-1)**.

2.9.2. Be aware of tribal relations requirements for the installations comprising the MAJCOM, using the assistance of the AFCEC SMEs, technical advisors, and specialists. **(T-2)**.

2.10. The Air National Guard (ANG). The ANG has a unique legal status and structure, as recognized by the reserve component authorities of Title 10 of the USC, Department of the Air Force Doctrine, and other governing authorities. **(T-1).** While supporting the intent of this Instruction, ANG units may prepare appropriate policy, supplement, guidance, and/or procedural

documents reflecting their unique legal status, resources, and structure as circumstances dictate. ANG units will route any unique documentation to the Office of Primary Responsibility (OPR) of this publication for coordination.

2.11. Air National Guard Logistics, Engineering, and Force Protection Directorate, Environmental Division, Environmental Quality Branch will: Assume the roles and responsibilities granted herein to AFCEC, AFMC, and AFIMSC in Sections 2.8.1-8 for the support of ANG installations. NGB/A4VN and NGB/A4FR work closely with AF/A4C and SAF/IE for environmental assessments and environmental impact statements in compliance with Title 32 Code of Federal Regulations **Part 989**, *The Environmental Impact Analysis Process (EIAP)*. **(T-1)**.

2.12. Base Installation Commander. The base installation commander's role in tribal government-to-government consultation is similar to the commander's role with an ambassador. The installation commander sets the tone for discussions geared towards building relationships between, and of mutual benefit to, the DAF and tribes. Installation commanders will:

2.12.1. Conduct and attend at least one annual face-to-face meeting with leaders of tribes associated with installation lands to establish mutually beneficial relationships, discuss installation or tribal issues of interest, and confirm protocols for continued interaction by supporting staff. **(T-1)**. Video teleconference, hybrid in-person and virtual meetings, or similar virtual or telephonic communications, may be an appropriate replacement for face-to-face meetings, if tribes approve.

2.12.2. Obtain appropriate training in tribal communications, culture, and consultations pertinent to their assigned installation, within their first year of assignment, and prior to the first face-to-face meeting. **(T-1)**.

2.12.3. Develop protocols or standard processes for communicating with tribes that have a cultural or historical affiliation with the lands affected by the installation and its activities, or review and approve existing consultation protocols. **(T-1)**.

2.12.4. Personally initiate regular consultation with tribes in coordination with the ITLO. **(T-1).** Determine protocols for follow-on interactions with tribal leadership, such as staff-to-staff consultation under 54 USC § 300101*et seq*., the *National Historic Preservation Act* (NHPA), *for DAF undertakings as required by NHPA Section 106 (54 USC § 306108), including NEPA actions for which a categorical exclusion (CATEX) is applied.* Detail interaction protocols in the ITRP. Ensure all interactions are documented and included within the official consultation records. Tribes may elevate consultations to the installation commander, if desired, and follow up consultation should be conducted upon these requests.

2.12.5. Designate a civilian government employee as the ITLO and ensure they obtain the appropriate initial and ongoing training in tribal communications, culture, and consultations soon after their appointment. **(T-1).** The ITLO must be a high-level civilian who is able to interact directly with installation leaders and allowed access to the installation commander without multiple chain of command impediments. **(T-1)**.

2.12.6. Approve the ITRP and its updates, and ensure it is appropriately implemented by installation personnel. **(T-2)**.

2.12.7. Coordinate with other installation commanders to identify a single installation to serve as the designated point of contact for a tribe(s) in cases where more than one installation

manages the airspace over a specific tribe's land. The designated point of contact will be responsible for maintaining an administrative record on behalf of all installations, sharing information and conferring as necessary. **(T-2)**.

2.12.8. Involve tribal governments early in the planning process for proposed actions so that tribal governments have enough time to provide meaningful comments on potential effects to protected tribal rights, land, water, and other resources. **(T-0).** Ensure sufficient time for follow-on discussions. **(T-0)**.

2.12.9. Ensure that proponents of actions on installation lands, or in installation-managed airspace, collaborate closely with the host installation to identify and address tribal concerns early in the planning process. **(T-0)**.

2.12.10. Review and provide information on tribal relations to the AFCEC during the biannual data calls to support DAF, DoD, Presidential Memoranda, and Congressional reporting requirements. **(T-0)**.

2.12.11. Assume the responsibilities of **Para 2.12** until an ITLO is designated **(T-1)**.

2.13. Installation Tribal Liaison Officer (ITLO) will:

2.13.1. Obtain appropriate training in tribal communications, culture, and consultations within a year, preferably within six months, of appointment by an installation commander and undertake continued education throughout their tenure. **(T-1)**.

2.13.2. Support installation commander in planning, coordinating, and conducting government-to-government meetings. Include installation Protocol Office so proper protocol decorum, customs, and courtesies are afforded to all parties. **(T-1).**

2.13.3. Develop and oversee the implementation of the ITRP, and ensure this plan is developed after engaging in tribal consultation and receiving feedback from associated tribes. Review the plan annually to ensure information is current and that it still meets installation and tribal needs and intent. **(T-1)**.

2.13.4. Coordinate with tribal representative(s) to address routine issues, in coordination with installation and AFCEC program managers as applicable. **(T-2)**.

2.13.5. Coordinate with the installation small business director to increase local tribal awareness of Small Business Administration and business development program opportunities. **(T-2).** For example, provide information on requirements for prequalification of tribal firms to bid on DAF projects.

2.13.6. Coordinate with the installation commander to ensure tribes that have historic or cultural affiliations with lands managed by the installation, or lands under managed airspace have been identified and contacted. Regularly monitor the *Federally Recognized Tribes* list updated by the Bureau of Indian Affairs for new recognized tribes that may have historical or cultural affiliation with the installation-managed lands. **(T-1)**.

2.13.7. Monitor elections and/or changes in tribal governments and contact new leadership to ensure continuity with ongoing consultations and protocols. Regularly verify key tribal government staff with tribal leadership for staff level coordination and consultation. **(T-1)**.

2.13.8. Maintain the official installation administrative record of all tribal interaction meetings. **(T-1).** The records must include the date, time, location or venue, attendees, a concise summary of the meeting, and recommended action items. **(T-1)**.

2.13.9. Assist the installation commander and natural resources manager (NRM), cultural resources manager (CRM), and NEPA manager in organizing and facilitating annual and other tribal relations meetings. **(T-1)**.

2.13.10. Engage with the installation commander and Base Civil Engineer (BCE) to ensure compliance with all agreements and understandings that address tribal resources, tribal rights, or Indian lands. **(T-0)**.

2.13.11. Engage with tribes, face-to-face when possible, to develop formal agreements that identify common goals and include general protocols, and/or other formal issue-based agreements. **(T-2).** The primary goal of such agreements is to foster relationships that facilitate the DAF missions, while respecting issues of importance to tribes.

2.13.12. Engage with the BCE, installation CRM, and installation NRM to ensure tribes with historic or cultural affiliations with lands and resources managed by the installation have opportunities to consult on, and/or participate in, the development and maintenance of the ICRMP and the INRMP. **(T-0).**

2.13.13. Develop installation-specific consultation protocols with associated tribes. **(T-1).** Memorialize these protocols in a consultation protocol agreement or within the ICRMP, INRMP, or ITRP, as practicable and appropriate.

2.13.14. Engage with the installation CRM, installation NRM, the AFCEC program managers, and the installation Protocol Office, as appropriate, to consider and understand cultural and natural resources, tribal histories, customs, cross-cultural communication, courtesies, and places of concern to tribes that might be affected by installation activities. **(T-1)**.

2.13.15. Ensure installation commanders are aware that tribes are often concerned with protecting properties (or areas) of religious, traditional, ancestral, and/or cultural importance. **(T-2)**.

2.13.16. Ensure installation consultation protocols facilitate tribal relations for NHPA Section 106 consultations under 36 CFR Part 800, NAGPRA consultations under 43 CFR Part 10, compliance with 42 USC § 1996, the *American Indian Religious Freedom Act* (AIRFA) of 1978, NEPA implementing regulations in Title 40 CFR Parts 1500-1508, and other relevant laws, regulations, and policies. **(T-1)**.

2.13.17. Engage with the BCE and the installation CRM, and NRM, and NEPA program manager to ensure associated tribes are provided reasonable opportunities to participate in early planning for actions according to the NHPA, Section 106 implementing regulations in 36 CFR Part 800 and the NEPA implementing regulations in Title 40 CFR Parts 1500 - 1508, *Council on Environmental Quality* (CEQ), and 32 CFR § 989. **(T-1)**.

2.13.18. Ensure installation personnel who conduct activities that might affect tribal lands or resources are aware of the related tribal issues and rights. **(T-1)**.

2.13.19. Ensure installation organizations and personnel with access to locations of, and information about, sensitive archaeological resources, traditional cultural places, ethnobotanical resources, and sacred sites do not disclose that information to the public

according to Title 16 USC Section 470aa-mm, the *Archaeological Resources Protection Act* of 1979, as amended, its implementing regulations for the DoD in Title 32 CFR Part 229, *Protection Of Archaeological Resources*: *Uniform Regulations,* and other laws and regulations. **(T-0)**.

2.13.20. Collect and facilitate the submission of accurate tribal relations information to AF/A4C and AFCEC in support of annual and biannual data calls for DAF, DoD, Presidential Memoranda, and Congressional reporting requirements. **(T-1)**.

2.13.21. Inform tribes of the opportunity to acquire excess or surplus personal property through the Defense Logistics Agency, Reutilization, Transfer and Donation program, and provide them acquisition details upon request. **(T-1)**.

2.13.22. Inform tribes of the opportunity to acquire excess real property and provide them acquisition details upon request. **(T-1).**

2.13.23. Inform tribes with information on education, training, recruitment, and employment opportunities upon request. Coordinate with appropriate installation organization (e.g., Force Support Squadron, Air Force Recruiting Service, Human Resources, etc.). **(T-2)**.

2.13.24. Ensure good faith consultation occurs in a timely manner with Alaska Native villages on any proposed action or policy that may have a substantial, direct effect on corporate lands, waters, or other natural resources, or on the ability of an Alaska Native village to participate in a DoD or DAF program for which it may otherwise be eligible. **(T-0)**.

2.13.25. Provide regular updates to, and seek feedback from, associated tribes regarding ongoing installation activities that might affect protected tribal resources, rights, or lands. **(T-1)**.

2.14. Installation Staff Judge Advocates will:

2.14.1. Advise installation commanders on relationships with Indian tribes and legal requirements for tribal consultation, when requested. **(T-1)**.

2.14.2. Seek assistance from the AF/JAOE in resolving new or complex issues requiring a higher level of legal review. **(T-1)**.

2.14.3. Ensure that judge advocates and civilian attorneys, whose duties include advising on cultural resources matters, NEPA, and/or tribal consultation and communication, receive training in tribal relations commensurate with the resources, history, and interest of the installation and its associated tribes. **(T-2)**.

2.15. The Installation Contracting Activity, with assistance as necessary from the Air Force Installation Contracting Center, will:

2.15.1. Coordinate with the appropriate DAF entities (e.g., Air Force Small Business Programs (SAF/SB), Assistant Secretary for Acquisition, Technology, and Logistics (SAF/AQ), etc.) and installation ITLO to ensure that the installation is well informed on programs and opportunities of potential interest to tribes. **(T-2)**.

2.15.2. Make information on contracting opportunities, grants, and cooperative agreements available for distribution to Indian tribes, Native American corporations, and Indian-owned businesses. **(T-2)**.

2.15.3. Ensure contracts include Defense Federal Acquisition Regulation Supplement (DFARS) clause 252.226-7001, *Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns*, when required by DFARS Subpart 226.1, *Indian Incentive Program* **(T-0).** This clause implements the DoD Indian Incentive Program, which is designed to generate business for Indian-Owned Economic Enterprises and Indian Organizations.

Chapter 3

REPORTING REQUIREMENTS

3.1. Annual Report. Installations will report on all their tribal relations activities from the previous fiscal year and planned activities for the upcoming fiscal year(s) to SAF/IEE through AF/A4C to support DoD, Presidential Memoranda, and Congressional reporting requirements. **(T-1).** AFCEC may solicit this and additional information in conjunction with its biannual data call to support DAF, DoD Presidential Memoranda, and Congressional reporting requirements. **(T-1).** This data will be compiled and coordinated through AF/A4C. **(T-1)**.

Dr. RAVI I. CHAUDHARY
Assistant Secretary of the Air Force (Energy, Installations, and Environment)

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

16 USC § 470aa-mm, *Archaeological Resources Protection Act*

16 USC § 670 *et seq*., *Sikes Act*

25 USC § 3001 *et seq*., *Native American Graves Protection and Repatriation Act* (NAGPRA)

42 USC § 1996, *Protection and Preservation of Traditional Religions of Native Americans*

42 USC § 4321 *et seq*., *National Environmental Policy Act* (NEPA)

54 USC § 300101 *et seq.*, *National Historic Preservation Act* (NHPA)

54 USC § 306108, *Effect of Undertaking on Historic Property* (referred to as Section 106 of NHPA)

32 CFR Part 229, *Protection of Archaeological Resources*: Uniform Regulations

32 CFR Part 989, *Environmental Impact Analysis Process*

36 CFR Part 800, *Protection of Historic Properties*

40 CFR Parts 1500-1508, *NEPA Implementing Regulations*

43 CFR Part 10, *Native American Graves Protection and Repatriation Regulations*

48 CFR Chapter 2, Defense Federal Acquisition Regulation Supplement (DFARS) Subpart 226.1, *Indian Incentive Program*

EO 13007, *Indian Sacred Sites*, 24 May 1996

EO 13175, *Consultation and Coordination with Indian Tribal Governments*, 6 November 2000

Presidential Memorandum on *Tribal Consultation*, 5 November 2009

Presidential Memorandum, *Government-to-Government Relationship with Tribal Governments*, 23 September 2004

Presidential Memorandum, *Government-to-Government Relations with Native American Tribal Governments*, 29 April 1994

Presidential Memorandum, *Tribal Consultation and Strengthening Nation-to-Nation Relationships*, 26 January 2021

Presidential Memorandum, *Uniform Standards for Tribal Consultation*, 30 November 2022

DoDI 4710.02, *Department of Defense Interactions with Federally Recognized Tribes*, 24 September 2018

DoDI 4710.03, *Consultation With Native Hawaiian Organizations (NHOs),* 31 August 2018

DoDI 4715.03, *Natural Resources Management*, 22 July 2024

DoDI 4715.16, *Cultural Resources Management*, 31 August 2018

AFPD 90-20, *Mission Sustainment*, 18 April 2019

AFPD 32-70, *Environmental Considerations in Air Force Programs and Activities*, 30 July 2018

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

DAFI 90-160, *Publications and Forms Management*, 21 June 2023

DAFMAN 32-7003, *Environmental Conservation*, 26 June 2024

DoDM 5400.07-M_AFMAN 33-302, *Freedom of Information Act Program*, 27 April 2018

"Department of the Air Force Policy Memorandum to DAFPD 90-1, *Policy, Publications and DoD Issuance Management*," DAFPD90-1_DAFPM2020-01, 15 July 2020

Headquarters Air Force Mission Directive (HAFMD) 1-14, *General Counsel and the Judge Advocate General*, 29 December 2016

Adopted Forms

AF Form 679, *Air Force Publication Compliance Item Waiver Request/Approval*

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AFCEC—Air Force Civil Engineer Center

AFI—Air Force Instruction

AFIMSC—Air Force Installation and Mission Support Center

AFMAN—Air Force Manual

AFMC—Air Force Material Command

AFPD—Air Force Policy Directive

AFRC—Air Force Reserve

ANG—Air National Guard

BCE—Base Civil Engineer

CEQ—Council on Environmental Quality

CFR—Code of Federal Regulations

CRM—Cultural Resources Manager

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFMAN—Department of the Air Force Manual

DAFPD—Department of the Air Force Policy Directive

DFARS—Defense Federal Acquisition Regulation Supplement

DoD—Department of Defense

DoDI—Department of Defense Instruction

DoDM—Department of Defense Manual

EIAP—Environmental Impact Analysis Process

EO—Executive Order

FOIA—*Freedom of Information Act*of 1966

ICRMP—Integrated Cultural Resources Management Plan

INRMP—Integrated Natural Resources Management Plan

ITLO—Installation Tribal Liaison Officer

ITRP—Installation Tribal Relations Plan

MAJCOM—Major Command

NAGPRA—*Native American Graves Protection and Repatriation Act*of 1990

NEPA—*National Environmental Policy Act*of 1969

NHPA—*National Historic Preservation Act*of 1966

NHO—Native Hawaiian Organization

NRM—Natural Resources Manager

OPR—Office of Primary Responsibility

RegAF—Regular Air Force

SME—Subject Matter Expert

USC—United States Code

USSF—United States Space Force

Office Symbols

AF/A3—Air Force Deputy Chief of Staff for Operations

AF/A4—Air Force Deputy Chief of Staff for Logistics, Engineering, and Force Protection

AF/A4C—Air Force Director of Civil Engineers

AF/JA—Headquarters, United States Air Force, Judge Advocate General

AF/JAOE—Operations and International Law Directorate, Environmental Law and Litigation Division

NGB/A4V—Air National Guard Logistics and Installations Directorate, Asset Management Division, Environmental Branch

SAF/AQ—Assistant Secretary for Acquisition, Technology, and Logistics

SAF/GCN—General Counsel of the DAF, Installations, Energy and Environmental Law Division

SAF/IEE—Deputy Assistant Secretary of the Air Force for Energy, Installations and Environment

SAF/PA—Director of Public Affairs, Office of the Secretary of the Air Force Public Affairs

SAF/SB—Assistant Secretary of the Air Force Small Business Programs

Terms

Administrative Record—Compiled information, located at or near the facility and available to the public (as feasible), that contains the documents that form the government's consultation record.

Affiliation—Relationship of dependence or implying a formal membership.

American Indian—Of, or relating to, a federally recognized tribe.

Archaeological resources—Any material remains of past human life or activities that are capable of providing scientific or humanistic understandings of past human behavior and cultural adaptation through the application of scientific or scholarly techniques such as controlled observation, contextual measurement, controlled collection, analysis, interpretation, and explanation (see 16 USC §§ 470aa-mm and 32 C.F.R. **Part 229**).

Association—Relationship of shared purpose or values; connection between ideas or things based on meaning.

Comprehensive Agreement for NAGPRA—An agreement between a federal agency and an Indian tribe concerning all agency land management activities that could result in the intentional excavation or inadvertent discovery of Native American human remains, funerary objects, sacred objects, or objects of cultural patrimony. The Comprehensive Agreement should establish procedures for consultation, treatment, and disposition of NAGPRA remains or cultural objects likely to be found during any undertaking or action on agency lands (per 43 CFR § 10.5(f)). The signed agreement, or correspondence related to efforts to reach agreement, constitute proof of consultation. A majority of designated tribal officials must consent to Comprehensive Agreements; and the installation commander, or their designee, must sign per 43 CFR § 10.4(c).

Consultation—Rarely a singular event but part of a process to inform a pending decision or course of action, it is information and opinion respectfully exchanged in both directions and likely involves different forms of communication and must begin with a face-to-face dialogue. If agreed to by the tribe, ongoing daily business communications may be considered part of the consultation process and may include written, telephonic, and electronic communication. (see "Meaningful consultation" definition)

Consultation Protocol Agreement—The documentation, developed in consultation with tribes, of the consultation procedures agreed upon between the installation and the tribe. The agreement should address issues of common interest to both parties with the goal being to foster relationships that facilitate military mission needs and address issues important to the tribe. If an agreement about the format of the consultation protocol cannot be reached, the protocol may be incorporated as a standard operating procedure within applicable documentation such as the installation Integrated Natural Resources Management Plan (INRMP) and/or the Integrated Cultural Resources Management Plan (ICRMP).

Cultural Resources Manager—A qualified, trained cultural resources program manager who meets the Secretary of the Interior *Standards and Guidelines for Federal Agency Historic Preservation Programs* pursuant to NHPA Section 110, or who has sufficient historic preservation, archaeological, historical, or architectural training to successfully carry out the responsibilities of the DAF Cultural Resources Program.

Department of the Air Force (DAF) Tribal Liaison Officer—The DAF Tribal Liaison Officer is designated by the Deputy Assistant Secretary of the Air Force (Environment, Safety, and Infrastructure). This individual is responsible for guidance, direction, and oversight for all matters pertaining to the formulation, review, and execution of plans, policies, programs, and budgets related to DAF tribal interaction requirements from DoDI 4710.02.

Environmental Impact Analysis Process—The EIAP provides DAF procedures for environmental impact analysis and DAF compliance with NEPA. The EIAP is essential to achieve and maintain compliance with 40 CFR §§ 1500-1508. To comply with NEPA and complete the EIAP, the CEQ and EIAP Regulations must be used together.

Government-to-Government—The relationship between federally recognized tribes and the United States is one between sovereigns, i.e., between a government and a government.

Historic Properties—Those properties listed or eligible for listing in the National Register of Historic Places.

Indian—see American Indian.

Indian Lands—Any lands the title to which is either (1) held in trust by the United States for the benefit of any Indian tribe or Indian, or, (2) held by an Indian tribe or Indian subject to restrictions by the United States against alienation as defined by DoDI 4710.02 and 32 CFR § 229.3(f), *Protection of Archaeological Resources*; or (3) Treaty Lands.

Installation Tribal Liaison Officer—Civilian personnel appointed by the installation commander to identify tribes with historic and/or cultural affiliation to lands managed by the installation and maintain consistency in communicating with tribal representatives.

Installation Tribal Relations Plan—The installation tribal relations plan outlines the approach installations will use to establish long-term relationships between the DAF, specific to a given installation's mission, and tribes. This DAFI gives flexibility to installations to develop their own installation tribal relations plan for building and maintaining tribal relationships. The AFCEC developed an installation tribal relations plan outline template, for modification and use by installations. At a minimum, the installation tribal relations plan should include (1) how the installation plans to reach out to identified federally recognized tribes with historic or cultural affiliation to installation lands; (2) specific details on how the installation plans to address areas of concern for tribes; (3) how the installations plans to maintain tribal relationships after the initial meeting between the commander and tribal leaders; (4) a standard process for consultation whenever issues arise between the tribe(s) and the installations; and (5) a list of current tribal government points of contact.

Integrated Cultural Resources Management Plan (ICRMP)—A document prepared by each DoD installation that describes how it defines the procedures and outlines 5-year plans for managing cultural resources on that installation. Integrated Cultural Resources Management Plans must contain the information required by DoDI 4715.16, Enclosure 6, and DAFMAN 32-7003.

Integrated Natural Resources Management Plan (INRMP)—A plan based on ecosystem management that describes and delineates the interrelationships of the individual natural resource's elements in concert with the mission and land use activities affecting the basic land management plans. Defines the natural resources elements and the activities required to implement stated goals and objectives for those resources. Integrated Natural Resources Management Plans are required

in accordance with the *Sikes Act*, 16 USC § 670a(a)(1)(B) and based on the criteria in DAFMAN 32-7003.

Meaningful consultation—To make a good-faith effort to engage the tribe(s) early enough in the planning process to obtain important relevant input to consider potential effects of the proposed action or project on the tribe(s) and inform the decision-making process.

National Environmental Policy Act (NEPA)—Signed into law on January 1, 1970, 42 USC § 4321 *et seq*., NEPA establishes national environmental policy and goals for the protection, maintenance, and enhancement of the environment and provides a process for implementing these goals for federal agencies. The Act also establishes the Council on Environmental Quality (CEQ) in 42 USC § 4321 to formulate environmental policy and regulations implementing NEPA.

Native American—Defined in the NAGPRA as, "Of, or relating to, a tribe, people, or culture that is indigenous to the United States."

Native American Graves Protection and Repatriation Act (NAGPRA)—Provides a systematic process for museums and federal agencies to return certain Native American human remains and cultural items -- funerary objects, sacred objects, or objects of cultural patrimony -- to lineal descendants, and culturally affiliated Indian tribes and NHOs. NAGPRA includes provisions for unclaimed Native American human remains and cultural items, excavation and discovery of Native American human remains and cultural items on federal and tribal lands, and penalties for noncompliance and illegal trafficking. In addition, NAGPRA authorizes federal grants to tribes, NHOs, and museums to assist with the documentation and repatriation of Native American human remains and cultural items and establishes the NAGPRA Review Committee to advise on matters related to NAGPRA and may advise on resolution of disputes that may arise concerning repatriation under NAGPRA.

Natural Resources Manager—The natural resources management professional who is delegated responsibility for the management of the natural resources program on an installation.

Protected tribal resources—Those natural resources and properties of traditional or customary religious or cultural importance, either on or off Indian lands, retained by or reserved by or for Indian tribes through treaties, statutes, judicial decisions, or EOs, including tribal trust resources.

Sacred Site—Defined in EO 13007 as, "Any specific, discrete, narrowly delineated location on federal land that is identified by an Indian Tribe, or Indian individual determined to be an appropriately authoritative representative of an Indian religion, as sacred by virtue of its established religious significance to, or ceremonial use by, an Indian religion; provided that the tribe or appropriately authoritative representative of an Indian religion has informed the agency of the existence of such a site."

Treaty lands—Ancestral lands that tribes transferred to the United States Government in exchange for (1) protection from encroachment, disturbance, or interference from non-Indians and (2) continued access to resources and significant places.

Tribal rights—Those rights legally accruing to a tribe or tribes by virtue of inherent sovereign authority, un-extinguished aboriginal title, treaty, statute, judicial decision, EO, or agreement, and that give rise to legally enforceable remedies.

Tribe—A federally recognized Indian or Alaska Native tribe, band, nation, pueblo, village, community, or other tribal entity that the Secretary of Interior acknowledges to exist as an Indian

tribal entity pursuant to the annual update to the Department of Interior list of *Indian Entities Recognized and Eligible to Receive Services from the United States Bureau of Indian Affairs* published in the Federal Register.